

Amendment No. 1 to SB1962

Reeves
Signature of Sponsor

AMEND Senate Bill No. 1962

House Bill No. 1983*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 221, Part 7, is amended by adding the following as a new section:

68-221-722. Hardwater level restriction on receipt of state funds.

(a) As used in this section:

(1) "Community water system" means a public water system that serves at least fifteen (15) service connections used by year-round residents or regularly serves at least twenty-five (25) year-round residents;

(2) "Hardwater" means water containing high levels of dissolved minerals, expressed as calcium carbonate (CaCO₃) equivalents;

(3) "Seasonal runoff" means a temporary increase in water hardness levels directly attributable to precipitation, snowmelt, or other seasonal hydrological events occurring during a defined period;

(4) "State funds" means grants, loans, appropriations, or other financial assistance provided by this state, including, but not limited to, funds from the state revolving fund, capital improvement grants, or infrastructure financing programs; and

(5) "System upgrade" means capital improvement, infrastructure modification, treatment facility enhancement, or equipment replacement that costs twenty-five thousand dollars (\$25,000) or more and is designed to improve,

expand, or modify the water treatment or distribution capacity of a public water system.

(b)

(1) A community water system serving a population of ten thousand (10,000) or more persons that seeks state funds for a system upgrade must first demonstrate to the department that the system's average hardness level in the preceding calendar year was below one hundred eighty milligrams per liter (180 mg/L).

(2) If a community water system's average hardness level equaled or exceeded one hundred eighty milligrams per liter (180 mg/L) in the preceding calendar year, the water system is ineligible to receive state funds for a system upgrade, unless the system demonstrates to the department that water softening treatment will be part of the system upgrade for which the water system is seeking state funds.

(3) For purposes of this subsection (b), the receipt of state funds for routine maintenance, repairs that cost less than twenty-five thousand dollars (\$25,000), administrative expenses, or operational costs do not trigger the demonstration required by subdivision (b)(1).

(c)

(1) A community water system subject to subdivision (b)(1) that demonstrates that a hardness level exceeding one hundred eighty milligrams per liter (180 mg/L) is directly caused by seasonal runoff is temporarily exempt from the requirements of subsection (b) during the affected period.

(2) To qualify for the seasonal runoff exemption, a community water system subject to subdivision (b)(1) shall:

(A) Notify the department within ten (10) business days of first exceeding the one hundred eighty milligrams per liter (180 mg/L) threshold due to seasonal runoff;

(B) Provide documentation demonstrating that the elevated hardwater level is directly attributable to seasonal runoff and not to system deficiencies or treatment failures; and

(C) Submit a remediation plan, if required by the department, detailing measures to minimize the duration and extent of noncompliance.

(3) A community water system subject to subdivision (b)(1) may utilize a seasonal runoff exemption for a cumulative period not to exceed one hundred twenty (120) days in a twelve-month period without prior approval from the department. An exemption exceeding one hundred twenty (120) days in a twelve-month period requires written approval from the commissioner.

SECTION 2. The heading in this act is for reference purposes only and does not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the heading in any compilation or publication containing this act.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.